

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
CEDIEU GUE,

Plaintiff,

-against-

CITY OF NEW YORK, POLICE OFFICER WILLIAM
BUBECK, BADGE NUMBER 1297, POLICE OFFICER
ARTHUR MCCARTHY, BADGE NUMBER 16247, THE
HOTEL PENNSYLVANIA, VORNADO REALTY L.P.,
AND BERESFORD WRIGHT,

Defendants.
-----X

Index No.:
Date Purchased:

Plaintiff designates New York
County as the place of trial.

Basis of venue is place
of occurrence.

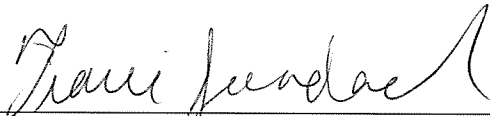
SUMMONS

Plaintiff resides at
179 Fisher Ave., Apt. 2
White Plains, New York 10606

To the above named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: White Plains, New York
November 18, 2014



TRACIE A. SUNDACK & ASSOCIATES, L.L.C.
Attorneys for Plaintiff
CEDIEU GUE
19 Court Street, 3rd Floor
White Plains, New York 10601
(914) 946-8100

Defendant's address:

CITY OF NEW YORK
100 Church Street
New York, New York 10007

POLICE OFFICER WILLIAM BUBECK, BADGE NUMBER 1297
Midtown South Precinct
357 W 35th St,
New York, NY 10001

POLICE OFFICER ARTHUR MCCARTHY, BADGE NUMBER 16247
Midtown South Precinct
357 W 35th St,
New York, NY 10001

THE HOTEL PENNSYLVANIA
401 7TH Avenue
New York, New York 10001

VORNADO REALTY L.P.
C/O C T Corporation System
111 Eighth Avenue
New York, New York 10011

BERESFORD WRIGHT
The Hotel Pennsylvania
401 7TH Avenue
New York, New York 10001

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
CEDIEU GUE,

Plaintiff,

-against-

CITY OF NEW YORK, POLICE OFFICER WILLIAM
BUBECK, BADGE NUMBER 1297, POLICE OFFICER
ARTHUR MCCARTHY, BADGE NUMBER 16247, THE
HOTEL PENNSYLVANIA, VORNADO REALTY L.P.,
AND BERESFORD WRIGHT,

Defendants.
-----X

Index No.:
Date Purchased:

VERIFIED COMPLAINT

Plaintiff CEDIEU GUE by and through his attorneys, TRACIE A. SUNDACK & ASSOCIATES, L.L.C., complaining of Defendants CITY OF NEW YORK, POLICE OFFICER WILLIAM BUBECK, BADGE NUMBER 1297, POLICE OFFICER ARTHUR MCCARTHY, BADGE NUMBER 16247, THE HOTEL PENNSYLVANIA, VORNADO REALTY L.P., AND BERESFORD WRIGHT, respectfully alleges as follows:

1. That Plaintiff CEDIEU GUE is a black male, a citizen of the United States, and at all relevant times a resident of the City and State of New York.
2. That at all times hereinafter mentioned, Plaintiff CEDIEU GUE was employed by Valera Global as a limousine driver.
3. That at all times hereinafter mentioned Defendant CITY OF NEW YORK was and still is a municipal corporation duly organized and existing under and by virtue of the General Municipal Law of the State of New York.
4. That at all times hereinafter mentioned Defendant CITY OF NEW YORK, its agents, servants and/or employees operated, maintained and controlled the New York City Police Department, including all the police officers thereof.
5. That at all times hereinafter mentioned, Defendants POLICE OFFICER WILLIAM BUBECK, BADGE NUMBER 1297 and POLICE OFFICER ARTHUR MCCARTHY, BADGE NUMBER 16247 were employed by Defendant CITY OF NEW YORK as police officers.

6. That at all times hereinafter mentioned, Defendant POLICE OFFICER WILLIAM BUBECK, BADGE NUMBER 1297 and POLICE OFFICER ARTHUR MCCARTHY, BADGE NUMBER 16247 acted within the scope of their employment for Defendant CITY OF NEW YORK.

7. That at all times hereinafter mentioned, Defendants POLICE OFFICER WILLIAM BUBECK, BADGE NUMBER 1297 and POLICE OFFICER ARTHUR MCCARTHY, BADGE NUMBER 16247 were acting under the color and pretense of the statutes, ordinances, regulations, customs, and usages of the County, City and State of New York, and under the authority of their office as police officers for said county, city and state.

8. That at all times hereinafter mentioned, Defendant THE HOTEL PENNSYLVANIA, located at 401 7th Avenue, New York, New York 10001 was owned by Defendant VORNADO REALTY L.P. a limited partnership organized under the laws of the State of Delaware and authorized to do business in New York.

9. That at all times hereinafter mentioned, Defendant BERESFORD WRIGHT was employed by Defendant THE HOTEL PENNSYLVANIA as a security guard and was acting within the scope of his employment.

10. That on January 14, 2014, at approximately 9:35 P.M., Plaintiff CEDIEU GUE lawfully parked the limousine he was operating in front of The Hotel Pennsylvania located in the County, City, and State of New York where he was waiting to pick up a client as part of his employment.

11. That, at the aforementioned time and place, within moments of parking at said location, he was ordered to leave by employees of Defendant THE HOTEL PENNSYLVANIA.

12. That, at the aforementioned time and place, Plaintiff CEDIEU GUE attempted to inform the employees of Defendant THE HOTEL PENNSYLVANIA that he was unable to move his vehicle because another vehicle was blocking him in.

13. That, at the aforementioned time and place, Defendant BERESFORD WRIGHT then reached into Plaintiff CEDIEU GUE's vehicle and struck him several times with a closed fist (hereinafter the "ASSAULT").

14. That, at the aforementioned time and place, Defendants POLICE OFFICER WILLIAM

BUBECK, BADGE NUMBER 1297 and POLICE OFFICER ARTHUR MCCARTHY, BADGE NUMBER 16247, placed Plaintiff CEDIEU GUE under arrest for Assault in the First Degree, despite Defendants' knowledge that they lacked reasonable grounds or probable cause to do so.

15. That Plaintiff CEDIEU GUE was transported to the Mid Town South Precinct 357 W 35th St, New York, NY 10001 and upon information and belief thereafter transported to Manhattan Central Booking (100 Centre Street, New York, New York) where his arrest was processed.

16. That Defendants CITY OF NEW YORK, POLICE OFFICER WILLIAM BUBECK, BADGE NUMBER 1297 and POLICE OFFICER ARTHUR MCCARTHY, BADGE NUMBER 16247, initiated criminal proceedings against Plaintiff CEDIEU GUE, charging him with two counts of Assault in the Third Degree, Attempted Assault, and Harassment in the Second Degree despite Defendants' knowledge that they lacked probable cause to do so.

17. That Plaintiff CEDIEU GUE was arraigned on January 15, 2014, and following said arraignment was held in the custody and control of Defendant CITY OF NEW YORK until he was, upon information and belief, released on his own recognizance later that same day.

18. That on October 2, 2014, by Order of the Honorable Alexander Tisch, all charges against Plaintiff CEDIEU GUE were dismissed (Docket Number 2014NY005211, New York City Criminal Court-New York County).

19. That on or about April 14, 2014, within 90 days of the happening of the complained of incident but more than 30 days prior to the commencement of this action, Plaintiff CEDIEU GUE duly presented, served, and filed a Notice of Claim, in writing, upon the Comptroller of Defendant CITY OF NEW YORK, setting forth the name and post office address of claimant, the nature of the claim, the time when, the place where, and the manner in which the claim arose.

20. That on or about November 14, 2014 Plaintiff CEDIEU GUE filed a notice of claim for malicious prosecution within 90 days of the happening of the complained of incident but more than 30 days prior to the commencement of this action, setting forth the name and post office address of claimant and claimant's attorney, the nature of the claim, the time when, the place where, and the manner in which the claim arose.

21. That more than 30 days have elapsed since service of said Notice of Claim and payment or adjustment thereof has been neglected or refused on behalf of Defendants CITY OF NEW YORK, POLICE OFFICER WILLIAM BUBECK, BADGE NUMBER 1297 and POLICE OFFICER ARTHUR MCCARTHY, BADGE NUMBER 16247.

22. That, upon information and belief, no notice of a municipal hearing pursuant to general Municipal Law 50-h was ever served on Plaintiff CEDIEU GUE.

23. This action is commenced within one year and ninety days after the causes of action arose.

24. As a result of the foregoing, Plaintiff CEDIEU GUE sustained, *inter alia*, physical injuries, emotional distress, embarrassment, humiliation, and deprivation of his constitutional rights.

AS AND FOR A FIRST CAUSE OF ACTION
ASSAULT

25. Plaintiff CEDIEU GUE repeats, reiterates and realleges each and every paragraph of this complaint and further alleges:

26. The aforementioned acts of Defendant BERESFORD WRIGHT, placed Plaintiff CEDIEU GUE in apprehension of imminent harmful and offensive bodily contact.

27. As a result of Defendant BERESFORD WRIGHT's conduct, Plaintiff CEDIEU GUE has suffered physical pain and injury, mental anguish, together with shock, fright, apprehension, embarrassment and humiliation.

AS AND FOR A SECOND CAUSE OF ACTION
BATTERY

28. Plaintiff CEDIEU GUE repeats, reiterates and realleges each and every paragraph of this complaint and further alleges:

29. That Defendant BERESFORD WRIGHT, touched Plaintiff CEDIEU GUE in a harmful and offensive manner.

30. That Defendant BERESFORD WRIGHT did so without privilege or consent from Plaintiff CEDIEU GUE.

31. As a result of Defendant BERESFORD WRIGHT's conduct, Plaintiff CEDIEU GUE has suffered physical pain and injury, mental anguish, together with shock, fright, apprehension, embarrassment and humiliation.

**AS AND FOR A THIRD CAUSE OF ACTION FOR FALSE ARREST
UNDER 42 U.S.C. § 1983**

32. Plaintiff CEDIEU GUE repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

33. That at the aforementioned time and place, Defendants POLICE OFFICER WILLIAM BUBECK, BADGE NUMBER 1297 and POLICE OFFICER ARTHUR MCCARTHY, BADGE NUMBER 16247, placed Plaintiff CEDIEU GUE under arrest, despite Defendants' knowledge that they lacked probable cause to do so.

34. That Plaintiff CEDIEU GUE had not committed any offense and Defendants POLICE OFFICER WILLIAM BUBECK, BADGE NUMBER 1297 and POLICE OFFICER ARTHUR MCCARTHY, BADGE NUMBER 16247, did not have reasonable grounds or probable cause to believe that Plaintiff had committed any offense.

35. That Defendants POLICE OFFICER WILLIAM BUBECK, BADGE NUMBER 1297 and POLICE OFFICER ARTHUR MCCARTHY, BADGE NUMBER 16247, were aware that probable cause did not exist for the arrest and detention of Plaintiff CEDIEU GUE and that said arrest and detention was illegal, without justification or excuse, and without authority of law, and the Defendants acted with malicious intent to arrest, oppress, and injure Plaintiff CEDIEU GUE and such actions were committed in bad faith.

36. That, in all of the wrongful acts above alleged, Defendants POLICE OFFICER WILLIAM BUBECK, BADGE NUMBER 1297 and POLICE OFFICER ARTHUR MCCARTHY, BADGE NUMBER 16247, acted without reasonable or probable cause and with malicious intent to arrest, oppress, and injure Plaintiff CEDIEU GUE and such actions were committed in bad faith.

37. As a direct and proximate result of the above-described unlawful and malicious acts of Defendants POLICE OFFICER WILLIAM BUBECK, BADGE NUMBER 1297 and POLICE

OFFICER ARTHUR MCCARTHY, BADGE NUMBER 16247, all committed under color of their authority as police officers, and while acting in that capacity, Plaintiff CEDIEU GUE was deprived of the rights and immunities secured to him under the Constitutions and laws of the United States and of the State of New York, in particular the First, Fourth, Fifth, Eighth and Fourteenth Amendments thereof, and 42 U.S.C. §§ 1981, 1983, and 1985 (2) and (3), his liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints, without probable cause.

38. As a further result of the above-described acts, Plaintiff CEDIEU GUE was deprived of the rights and immunities secured to him under the Constitution and laws of the United States and of the State of New York.

**AS AND FOR A FOURTH CAUSE OF ACTION FOR FALSE IMPRISONMENT
UNDER 42 U.S.C. § 1983**

39. Plaintiff CEDIEU GUE repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

40. That Plaintiff CEDIEU GUE was falsely imprisoned for approximately twenty-four (24) hours from January 14, 2014 to January 15, 2014, by Defendant CITY OF NEW YORK, its agents, servants, and employees, including but not limited to Defendants SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 25TH PRECINCT, who procured and/or effected said false imprisonment knowing their actions to be wrongful and malicious and without any basis.

41. That Defendant CITY OF NEW YORK by and through its agents, servants, and employees, including but not limited to, Defendants POLICE OFFICER WILLIAM BUBECK, BADGE NUMBER 1297 and POLICE OFFICER ARTHUR MCCARTHY, BADGE NUMBER 16247, intended to confine Plaintiff CEDIEU GUE, and Plaintiff CEDIEU GUE was conscious of the confinement, and Plaintiff CEDIEU GUE did not consent to the confinement.

42. That Defendants' words, actions, and the charges laid by them were willful, malicious, false, wrongful, without reason or basis and without probable cause and committed in bad faith and solely for the purpose of falsely imprisoning Plaintiff CEDIEU GUE and damaging Plaintiff CEDIEU

GUE in his reputation and depriving him of his liberty.

43. That as a direct and proximate result of the above-described unlawful and malicious acts of Defendants POLICE OFFICER WILLIAM BUBECK, BADGE NUMBER 1297 and POLICE OFFICER ARTHUR MCCARTHY, BADGE NUMBER 16247, all committed under color of their authority as police officers for Defendant CITY OF NEW YORK, and while acting in that capacity, Plaintiff CEDIEU GUE suffered damage, all of which is in violation of his rights under the Constitution and laws of the United States and of the State of New York.

**AS AND FOR A FIFTH CAUSE OF ACTION FOR MALICIOUS PROSECUTION
UNDER 42 U.S.C. § 1983**

44. Plaintiff CEDIEU GUE repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

45. That Defendants POLICE OFFICER WILLIAM BUBECK, BADGE NUMBER 1297 and POLICE OFFICER ARTHUR MCCARTHY, BADGE NUMBER 16247 misrepresented and falsified evidence before the District Attorney.

46. That Defendants POLICE OFFICER WILLIAM BUBECK, BADGE NUMBER 1297 and POLICE OFFICER ARTHUR MCCARTHY, BADGE NUMBER 16247 did not make a complete and full statement of facts to the District Attorney.

47. That Defendants POLICE OFFICER WILLIAM BUBECK, BADGE NUMBER 1297 and POLICE OFFICER ARTHUR MCCARTHY, BADGE NUMBER 16247 withheld exculpatory evidence from the District Attorney.

48. That Defendants POLICE OFFICER WILLIAM BUBECK, BADGE NUMBER 1297 and POLICE OFFICER ARTHUR MCCARTHY, BADGE NUMBER 16247 were directly and actively involved in the initiation of criminal proceedings against Plaintiff CEDIEU GUE.

49. That Defendants Defendants POLICE OFFICER WILLIAM BUBECK, BADGE NUMBER 1297 and POLICE OFFICER ARTHUR MCCARTHY, BADGE NUMBER 16247 lacked probable cause to initiate criminal proceedings against Plaintiff CEDIEU GUE.

50. That Defendants POLICE OFFICER WILLIAM BUBECK, BADGE NUMBER 1297

and POLICE OFFICER ARTHUR MCCARTHY, BADGE NUMBER 16247 acted with malice in initiating criminal proceedings against Plaintiff CEDIEU GUE.

51. That Defendants POLICE OFFICER WILLIAM BUBECK, BADGE NUMBER 1297 and POLICE OFFICER ARTHUR MCCARTHY, BADGE NUMBER 16247 were directly and actively involved in the continuation of criminal proceedings against Plaintiff CEDIEU GUE.

52. That Defendants POLICE OFFICER WILLIAM BUBECK, BADGE NUMBER 1297 and POLICE OFFICER ARTHUR MCCARTHY, BADGE NUMBER 16247 lacked probable cause to continue criminal proceedings against Plaintiff CEDIEU GUE.

53. That Defendants POLICE OFFICER WILLIAM BUBECK, BADGE NUMBER 1297 and POLICE OFFICER ARTHUR MCCARTHY, BADGE NUMBER 16247 acted with malice in continuing criminal proceedings Plaintiff CEDIEU GUE.

54. That Defendants POLICE OFFICER WILLIAM BUBECK, BADGE NUMBER 1297 and POLICE OFFICER ARTHUR MCCARTHY, BADGE NUMBER 16247 misrepresented and falsified evidence throughout all phases of the criminal proceeding.

55. That, notwithstanding the perjurious and fraudulent conduct of Defendants POLICE OFFICER WILLIAM BUBECK, BADGE NUMBER 1297 and POLICE OFFICER ARTHUR MCCARTHY, BADGE NUMBER 16247, the criminal proceedings were terminated in Plaintiff CEDIEU GUE's favor.

AS AND FOR A SIXTH CAUSE OF ACTION FOR MUNICIPAL LIABILITY

56. Plaintiff CEDIEU GUE repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

57. That Defendants POLICE OFFICER WILLIAM BUBECK, BADGE NUMBER 1297 and POLICE OFFICER ARTHUR MCCARTHY, BADGE NUMBER 16247 while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/ authority, which is forbidden by the Constitution of the United States.

58. That the aforementioned customs, policies, usages, practices, procedures and rules of the

City of New York and the New York City Police Department included, but were not limited to, wrongfully detaining minority males based on racial profiling and making unlawful arrests in order to satisfy an arrest quota.

59. That the foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department constituted deliberate indifference to the safety, well- being and constitutional rights of Plaintiff CEDIEU GUE.

60. That the foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by Plaintiff CEDIEU GUE as alleged herein.

61. That the foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the moving force behind the constitutional violations suffered by Plaintiff CEDIEU GUE as alleged herein.

62. That Defendants POLICE OFFICER WILLIAM BUBECK, BADGE NUMBER 1297 and POLICE OFFICER ARTHUR MCCARTHY, BADGE NUMBER 16247 while acting under the color of state law, was directly and actively involved in violating Plaintiff CEDIEU GUE's constitutional rights.

63. That all of the foregoing acts by Defendant CITY OF NEW YORK, its agents, servants and/or employees including Defendants POLICE OFFICER WILLIAM BUBECK, BADGE NUMBER 1297 and POLICE OFFICER ARTHUR MCCARTHY, BADGE NUMBER 16247, deprived Plaintiff CEDIEU GUE of federally protected rights including, but not limited to, the right:

- A. To be free from seizure and arrest not based on probable cause;
- B. To be free from unlawful search;
- C. To be free from unwarranted and malicious criminal prosecution;
- D. To receive equal protection under the law.

AS AND FOR A SEVENTH CAUSE OF ACTION FOR FAILURE TO INTERVENE

64. Plaintiff CEDIEU GUE repeats, reiterates and realleges each and every allegation contained in this complaint and further alleges:

65. That each and every individual Defendant had an affirmative duty to intervene on Plaintiff CEDIEU GUE's behalf to prevent the violation of his constitutional rights and failed to so intervene despite having had a realistic opportunity to do so.

66. As a result of the aforementioned conduct of Defendants POLICE OFFICER WILLIAM BUBECK, BADGE NUMBER 1297 and POLICE OFFICER ARTHUR MCCARTHY, BADGE NUMBER 16247, Plaintiff CEDIEU GUE's constitutional rights were violated and he was subjected to cruel and unusual punishment and sustained physical injuries.

**AS AND FOR AN EIGHTH CAUSE OF ACTION UNDER NEW YORK STATE LAW
FOR FALSE ARREST**

67. Plaintiff CEDIEU GUE repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

68. Defendants POLICE OFFICER WILLIAM BUBECK, BADGE NUMBER 1297 and POLICE OFFICER ARTHUR MCCARTHY, BADGE NUMBER 16247, arrested Plaintiff CEDIEU GUE in the absence of probable cause and without a warrant.

69. As a result of the aforesaid conduct by Defendants CITY OF NEW YORK, POLICE OFFICER WILLIAM BUBECK, BADGE NUMBER 1297 and POLICE OFFICER ARTHUR MCCARTHY, BADGE NUMBER 16247 Plaintiff CEDIEU GUE was subjected to an illegal, improper and false arrest by the Defendants and taken into custody and caused to be falsely imprisoned, detained, confined, incarcerated and prosecuted by the Defendants in criminal proceedings.

70. The aforesaid actions by the Defendants constituted a deprivation of Plaintiff CEDIEU GUE's rights.

**AS AND FOR A NINTH CAUSE OF ACTION UNDER NEW YORK STATE LAW FOR
FALSE IMPRISONMENT**

71. Plaintiff CEDIEU GUE repeats, reiterates, and realleges each and every paragraph of this complaint and further allege:

72. As a result of the foregoing, Plaintiff CEDIEU GUE was falsely imprisoned, his liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints.

73. Plaintiff CEDIEU GUE was conscious of said confinement and did not consent to same.

74. The confinement of Plaintiff CEDIEU GUE was without probable cause and was not otherwise privileged.

75. As a result of the aforementioned conduct, Plaintiff CEDIEU GUE has suffered physical and mental injury, together with embarrassment, humiliation, shock, fright and loss of freedom.

**AS AND FOR AN TENTH CAUSE OF ACTION FOR MALICIOUS PROSECUTION
UNDER NEW YORK STATE LAW**

76. Plaintiff CEDIEU GUE repeats, reiterates and realleges each and every paragraph of this complaint and further alleges:

77. On or about January 15, 2014, Defendant CITY OF NEW YORK, its agents, servants, and employees, including Defendants POLICE OFFICER WILLIAM BUBECK, BADGE NUMBER 1297 and POLICE OFFICER ARTHUR MCCARTHY, BADGE NUMBER 16247, commenced a criminal proceeding against Plaintiff CEDIEU GUE, and falsely and maliciously, and without probable cause, charged Plaintiff with crimes.

78. Defendants POLICE OFFICER WILLIAM BUBECK, BADGE NUMBER 1297 and POLICE OFFICER ARTHUR MCCARTHY, BADGE NUMBER 16247, with the consent and participation of one another, continued said proceeding despite the fact that they knew or should have known that Plaintiff CEDIEU GUE had not committed any crimes, that there were no exigent circumstances justifying a warrantless arrest, and that there was no need for the arrest and imprisonment of Plaintiff.

79. Defendants POLICE OFFICER WILLIAM BUBECK, BADGE NUMBER 1297 and POLICE OFFICER ARTHUR MCCARTHY, BADGE NUMBER 16247 were directly and actively involved in the initiation of criminal proceedings against Plaintiff CEDIEU GUE.

80. Defendants POLICE OFFICER WILLIAM BUBECK, BADGE NUMBER 1297 and POLICE OFFICER ARTHUR MCCARTHY, BADGE NUMBER 16247 lacked probable cause to initiate criminal proceedings against Plaintiff CEDIEU GUE.

81. Defendants POLICE OFFICER WILLIAM BUBECK, BADGE NUMBER 1297 and POLICE OFFICER ARTHUR MCCARTHY, BADGE NUMBER 16247 were motivated by actual malice in initiating criminal proceedings against Plaintiff CEDIEU GUE.

82. Defendants POLICE OFFICER WILLIAM BUBECK, BADGE NUMBER 1297 and POLICE OFFICER ARTHUR MCCARTHY, BADGE NUMBER 16247 misrepresented and falsified evidence before the District Attorney.

83. Defendants POLICE OFFICER WILLIAM BUBECK, BADGE NUMBER 1297 and POLICE OFFICER ARTHUR MCCARTHY, BADGE NUMBER 16247 did not make a complete and full statement of facts to the District Attorney.

84. Defendants POLICE OFFICER WILLIAM BUBECK, BADGE NUMBER 1297 and POLICE OFFICER ARTHUR MCCARTHY, BADGE NUMBER 16247 withheld exculpatory evidence from the District Attorney.

85. Defendants POLICE OFFICER WILLIAM BUBECK, BADGE NUMBER 1297 and POLICE OFFICER ARTHUR MCCARTHY, BADGE NUMBER 16247 were directly and actively involved in the continuation of criminal proceedings against Plaintiff.

86. Defendants POLICE OFFICER WILLIAM BUBECK, BADGE NUMBER 1297 and POLICE OFFICER ARTHUR MCCARTHY, BADGE NUMBER 16247 lacked probable cause to continue criminal proceedings against Plaintiff CEDIEU GUE.

87. Defendants POLICE OFFICER WILLIAM BUBECK, BADGE NUMBER 1297 and POLICE OFFICER ARTHUR MCCARTHY, BADGE NUMBER 16247 were motivated by actual malice in continuing criminal proceedings against Plaintiff CEDIEU GUE.

88. That, notwithstanding the perjurious and fraudulent conduct of Defendants, the criminal proceedings were terminated in Plaintiff CEDIEU GUE's favor.

**AS AND FOR A ELEVENTH CAUSE OF ACTION FOR
NEGLIGENT HIRING AND RETENTION**

89. Plaintiff CEDIEU GUE repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

90. That Defendant CITY OF NEW YORK was careless and reckless in hiring and retaining as and for its employees, Defendants POLICE OFFICER WILLIAM BUBECK, BADGE NUMBER 1297 and POLICE OFFICER ARTHUR MCCARTHY, BADGE NUMBER 16247 in that said Defendant employees lacked the experience, deportment and ability to be employed by Defendant CITY OF NEW YORK; in that Defendant CITY OF NEW YORK failed to exercise due care and caution in its hiring practices, and in particular, in hiring the Defendant employees who lacked the mental capacity and the ability to function as employees of Defendant CITY OF NEW YORK; in that the defendant employees lacked the maturity, sensibility and intelligence to be employed by Defendant CITY OF NEW YORK; in that Defendant CITY OF NEW YORK knew of the lack of ability, experience, deportment and maturity of said defendant employees when they hired them to be employees; and, in that Defendant CITY OF NEW YORK, its agents, servants and/or employees were otherwise careless, negligent and reckless.

91. Defendant CITY OF NEW YORK knew, or should have known in the exercise of reasonable care, the propensities of Defendants POLICE OFFICER WILLIAM BUBECK, BADGE NUMBER 1297 and POLICE OFFICER ARTHUR MCCARTHY, BADGE NUMBER 16247 to engage in the wrongful conduct heretofore alleged in this Complaint.

**AS AND FOR A TWELFTH CAUSE OF ACTION FOR
NEGLIGENT TRAINING AND SUPERVISION**

92. Plaintiff CEDIEU GUE repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

93. The failure of Defendant CITY OF NEW YORK to adequately train, supervise, discipline or in any way control the behavior of Defendants POLICE OFFICER WILLIAM BUBECK, BADGE NUMBER 1297 and POLICE OFFICER ARTHUR MCCARTHY, BADGE NUMBER 16247, in the exercise of their employment functions, and the failure to enforce the laws of the State of New York and the regulations of Defendant CITY OF NEW YORK is evidence of the reckless lack of cautious regard for the rights of the public including Plaintiff CEDIEU GUE. Further, the Defendants exhibited a lack of that degree of due care which prudent and reasonable individuals would show.

94. The failure of Defendant CITY OF NEW YORK to train, supervise, discipline or in any other way control Defendants POLICE OFFICER WILLIAM BUBECK, BADGE NUMBER 1297 and POLICE OFFICER ARTHUR MCCARTHY, BADGE NUMBER 16247, in the exercise of their employment functions and the failure to enforce the laws of the State of New York and the regulations of Defendant CITY OF NEW YORK, was carried out willfully, wantonly, maliciously and with such reckless disregard for the consequences as to display a conscious disregard for the dangers of harm and injury to the citizens of New York, including Plaintiff CEDIEU GUE.

**AS AND FOR A THIRTEENTH CAUSE OF ACTION FOR
RESPONDEAT SUPERIOR LIABILITY**

95. Plaintiff CEDIEU GUE repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

96. Defendants THE HOTEL PENNSYLVANIA AND VORNADO REALTY L.P. is vicariously liable for the acts of its employees and agents, including Defendant BERESFORD WRIGHT, who were on duty and acting in the scope of their employment when they engaged in the wrongful conduct described herein.

97. Defendant CITY OF NEW YORK is vicariously liable for the acts of its employees and agents including Defendants POLICE OFFICER WILLIAM BUBECK, BADGE NUMBER 1297 and POLICE OFFICER ARTHUR MCCARTHY, BADGE NUMBER 16247, who were on duty and acting in the scope of their employment when they engaged in the wrongful conduct described

herein.

WHEREFORE Plaintiff CEDIEU GUE demands judgment against Defendants CITY OF NEW YORK, POLICE OFFICER WILLIAM BUBECK, BADGE NUMBER 1297, POLICE OFFICER ARTHUR MCCARTHY, BADGE NUMBER 16247, THE HOTEL PENNSYLVANIA, VORNADO REALTY L.P., AND BERESFORD WRIGHT, jointly and severally, in the amount of Two Million Dollars (\$2,000,000.00) in compensatory damages and Four Million Dollars (\$4,000,000.00) in punitive damages, plus reasonable attorney's fees, costs and disbursements of this action.

Dated: White Plains, New York
November 18, 2014

A handwritten signature in cursive script, reading "Tracie Sundack", is written over a horizontal line.

TRACIE A. SUNDACK & ASSOCIATES, L.L.C.
Attorneys for Plaintiff
CEDIEU GUE
19 Court Street, 3rd Floor
White Plains, New York 10601
(914) 946-8100

INDIVIDUAL VERIFICATION

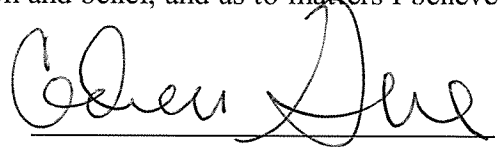
STATE OF NEW YORK)

SS.:)

COUNTY OF WESTCHESTER)

I, CEDIEU GUE , being duly sworn, say:

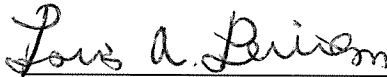
I am the plaintiff in the within action. I have read the foregoing SUMMONS AND VERIFIED COMPLAINT and know the contents thereof; the same is true to my knowledge, except as to the matters therein stated to be alleged on information and belief, and as to matters I believe it to be true.



CEDIEU GUE

Sworn to before me this

19 day of November, 2014



NOTARY PUBLIC

LOUIS A. LEVITHAN
NOTARY PUBLIC-STATE OF NEW YORK
No. 02LE6309859
Qualified in Rockland County
My Commission Expires August 18, 2018